

25NWCV03483 25NWCV03483

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 25NWCV03483 Hearing Date: July 30, 2026 Dept: P

AMERICAN FAST FREIGHT, INC. v. QX LOGISTIX

CASE NO.: 25NWCV03483

HEARING: 07/31/2026 @ 9:30 AM

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TENTATIVE ORDER

Plaintiff American Fast Freight, Inc.'s motion for leave to amend is CONTINUED to Friday, August 21, 2026 at 9:30 AM in Dept. P. Plaintiff is instructed to submit a supplemental declaration by August 19, 2026, as explained below.

Moving party to give notice.

Plaintiff American Fast Freight, Inc. (Plaintiff) moves for leave to file a first amended complaint (FAC).

Background

On September 30, 2025, Plaintiff filed this action against Defendant QX Logistix LLC (Defendant) and Does 1 through 20. The form complaint alleges that Defendant became indebted to Plaintiff under an arrangement by which Plaintiff would provide transportation and freight related services and Defendant promised to pay Plaintiff. The form complaint asserts a single cause of action for common counts.

Legal Standard

"The court may...in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473 subd. (a).)

California Rules of Court, rule 3.1324(a) provides: "A motion to amend a pleading before trial must:

- (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
- (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located."

California Rules of Court rule 3.1324(b) requires a separate declaration accompany the motion. The separate declaration must include: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when facts giving rise to the amended allegations were discovered; and (4) the reasons the request for amendment was not made earlier. (Cal. Rules of Court, rule 3.1324(b).)

"If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (Morgan v. Superior Court of California (1959) 172 Cal.App.2d 527, 530.)

Discussion

Plaintiff moves for leave to file a FAC to correct Plaintiff's name. This motion is unopposed.

Plaintiff explains that "[d]uring litigation, Plaintiff inadvertently failed to accurately represent Plaintiff's name in the Complaint. Upon review of the supporting documents, I discussed the case with Plaintiff and concluded that the Plaintiff name must be adjusted." (Hettena Decl., ¶ 4.) Plaintiff seeks to "adjust Plaintiff's name from American Fast Freight, Inc. to Odyssey Transport & Warehouse LLC." (Hettena Decl., ¶ 5.)

Here, Plaintiff files the proposed FAC as required under California Rules of Court, rule 3.1324(a). (Hettena Decl., Exh. C.) However, the Court seeks clarity as to whether this name change represents a different Plaintiff or the wrong name of the same Plaintiff. The Court finds a continuance warranted to permit Plaintiff to address this clarification.

Accordingly, Plaintiff's motion for leave to amend is CONTINUED to Friday, August 21, 2026 at 9:30 AM in Dept. P. Plaintiff is instructed to submit a declaration by August 19, 2026 explaining whether the proposed name change represents the same Plaintiff.